

HEADNOTE

“Sufficient interest in this case despite unilateral cease-and-desist declaration (yes). Application is not devoid of purpose (R. 360 RoP). Competence for Ireland not contested.”

COURT

Local Division in The Hague

PROCEEDINGS

Application for provisional measures

PATENT

EP2713879

ANALYTE SENSOR DEVICES,
CONNECTIONS, AND METHODS

KEYWORDS

provisional measures

cease-and-desist declaration

legitimate interest

competence

Rule 360

No need to adjudicate

SUMMARY

The Local Division in The Hague ruled on an application for provisional measures. The patent at issue relates to analyte sensor devices, connections, and methods. According to the headnotes of the decision, an applicant retains sufficient interest to pursue provisional measures even after issuing a unilateral cease-and-desist declaration. The court found that such an application is not devoid of purpose under the Rules of Procedure. The Local Division confirmed it had competence to hear the case with respect to Ireland.